Louisa County Water Authority
Board of Directors
February 15, 2023

MEMBERS PRESENT: Mr. Judson Foster, Chairman; Mr. Douglas Smith, Vice-Chairman; Mr. David Kies; Mr. Robert Hardy; Mr. Tom Filer; Mr. Robert Morgan

OTHERS PRESENT: Ms. Pam Baughman, General Manager; Mr. Hunter Martin, Water Operations Manager; Ms. Mary Johnson, Program Manager; Mr. Kyle Eldridge, Assistant County Attorney; Mr. Eric Purcell, Louisa County Board of Supervisors (*arrived at 6:01 pm)*

A. Call to Order

Chairman Foster called the meeting to order at 6:00 pm.

1. ADOPTION OF THE AGENDA

Chairman Foster asked if there were any changes or additions to the agenda. Hearing none, Mr. Hardy made a motion to adopt the agenda as presented. Mr. Kies seconded the motion and carried 6-0.

B. Presentations

C. Citizen Information

D. Consent Agenda

(*Mr. Purcell arrived at 6:01 pm)*

2. APPROVAL OF THE MINUTES:

A. JANUARY 11, 2023 – REGULAR BUSINESS MEETING

3. TREASURER'S REPORT:

A. O & M REPORT / CAPITAL REVENUE & EEXPENDITURE REPORT – JANUARY 2023
B. APPROVAL OF DISBURSEMENTS – JANUARY 2023
C. CONSTRUCTION FUND – JANUARY 2023
D. INVESTMENTS
E. REGIONAL SEWER EXPENSE & REVENUE
F. NORTHEAST CREEK: PAID CONNECTION FEES AND ALLOCATIONS
G. ZION CROSSROADS: PAID CONNECTION FEES AND ALLOCATIONS
H. SECOND QUARTER FISCAL INCOME & EXPENSE STATEMENTS (SUMMARY AND DETAIL)

The Board reviewed the Consent Agenda, including the Treasurer's Report. Upon completion of the review, Mr. Hardy made a motion to approve the Consent Agenda and Treasurer's Report as presented. The motion was seconded by Mr. Smith and carried 6-0.

E. Old Business

4. UPDATE – JAMES RIVER WATER PROJECT

The permit processes are still going well, no concerns currently.

5. NORTHEAST CREEK WATER TREATMENT PLANT – SLUDGE VAC-SYSTEM UPDATE
The construction permit application has been submitted. Mr. Mirza with the Virginia Department of Health – Office of Drinking Water was onsite Monday, February 13, 2023, to inspect the sedimentation basins.

6. ZION CROSSROADS WELL SYSTEM UPDATES

A. SPRING CREEK - #1 & #2 UPDATE

The piping materials have been delivered to the site. The electrician will be applying for the permits in the coming weeks. Staff is hopeful that the project will be completed by the end of April 2023.

B. POORE WELL IMPROVEMENTS UPDATE

The Poore Well Facility Improvement project has been substantially completed. On Monday, February 13, 2023, Mr. Mirza with the Virginia Department of Health - Office of Drinking Water completed the site inspection and the wells have been put back into service. The AquaMag chemical feed system has not been installed. The chemical feed system will only be installed if the filtering system is not effective in removing the iron and manganese from the finished water. Within 24 hours the filter blew apart and the system is currently off until the manufacturer can be contacted about steps forward. The chemical addition will more than likely need to be installed.

C. ZION CROSSROADS DISTRIBUTION SYSTEM HYDRAULIC STUDY UPDATE

The Virginia Department of Health – Office of Drinking Water accepted the Zion Crossroads Distribution System Hydraulic Study without question and included the calculations obtained from the study / model into the newly issued Waterworks Operation Permit. The Waterworks Operation Permit will be amended when Spring Creek Well #1 & #2 are ready to bring into production.

D. ZION CROSSROADS WATERWORKS OPERATION PERMIT

The Zion Crossroads Waterworks Operation Permit was issued January 27, 2023, including an increased effective capacity of 432,220 from 320,235. A net increase in storage capacity of 111,985 gallons.

7. REGIONAL WWTP PERMIT RENEWAL AND PROCESS OPERATIONS STUDY

Staff met on Tuesday, February 14, 2023, to discuss the status of the Process Operations Study. The final report will include SOP for operations and treatment options to meet the coming regulations.

8. ZION CROSSROADS WWTP DIESEI TANK ADDITION FOR GENERATOR

Advanced Fueling Systems, Inc. provided a new bid, with less features. The new proposal total was $34,379.38, $3,275.77 less than the original proposal and $10,620.62 less than the approved budget amount of $45,000 for this project.

9. NEW TRUCK PURCHASE; SNOWPLOW AND 100-GALLON DIESEL TRANSFER TANK

Amy Dunivan checked on the status on Monday, February 13, 2023, the salesman stated that he has not received any update.

10. OPEN POSITIONS

A. MAINTENANCE TECH

No interviews have been scheduled.

B. WASTEWATER TRAINEE OR OPERATOR

Two interviews are scheduled. One Thursday afternoon, February 16, 2023, and one Wednesday afternoon, February 22, 2023. The February 16, 2023, interview has been cancelled. A few more applications have been received.

C. OFFICE ASSISTANT – PART-TIME

The Office Assistant position has been filled. Nellie Clatterbuck will begin on Thursday, February 16, 2023.

11. UPDATE – LAKE ANNA ENVIRONMENTAL WWTP
The County is close to finalizing the purchase of the Lake Anna Environmental WWTP. AquaLaw has reviewed the draft permit and consulted with the County Attorney. Dewberry Engineers, LLC will have completed the draft permit application, the County Attorney has provided the green-light to submit the application to the Department of Environmental Quality. The permit application was submitted February 15, 2023.

Mr. Purcell asked if it was too late to add a closed session to the agenda. Mr. Foster, with confirmation from Mr. Eldridge, Assistant County Attorney, stated that a closed session could be added to the meeting agenda.

Mr. Smith made a motion to approve added a closed session to the agenda. Mr. Morgan seconded the motion and carried 6-0.

12. UPDATE – CLEARWELL ROOF / BASEMENT FLOOR DRAINAGE

Nothing new to report.

13. UPDATE – NANOFILTRATION GRATING EVALUATION / UPGRADE TO ACCESS / PALLET JACK

Barton & Boyd has been onsite several times to look over the site. Central Virginia Contractors have been brought onsite to fix a drain line that is backing water up into the loading dock area.

14 DRAFT FY2024 BUDGET

A. POWER POINT PRESENTATION
B. PROPOSED INCREASE
C. PROPOSED SUMMARY STATEMENT OF INCOME
D. PROPOSED DETAIL STATEMENT OF INCOME
E. PROPOSED SUMMARY STATEMENT OF EXPENSES
F. PROPOSED DETAIL STATEMENT OF EXPENSES

The Board viewed the power point presentation regarding the current budget information to date as well as a draft budget information for FY2024. Ms. Baughman explained some of the reasons for increases in specific budget line items (chemicals, insurance, gas, propane, diesel, lab services, etc.). Ms. Baughman showed how incremental increases in fees would lessen the dependance in capital income for operations & maintenance expenditures.

After the review and discussion, the Board asked the County Attorney if an Authority or Utility could charge different rates for service areas / service districts. Mr. Eldridge, Assistant County Attorney stated that he would investigate the matter and get an answer beck to the Board.

Ms. Baughman asked the Board to table the budget, providing time to correct an error discovered in a line item, check the formulas for the incremental increases and to add the Ferncliff Water Treatment Plant revenue and expenditures to the budget.

The Board also directed the General Manager to set up a meeting with the County Administrator, Christian Goodwin; Eric Purcell, Louisa County Board of Supervisors and two Louisa County Water Authority Board of Directors to discuss funding options for new facilities.

15. RIGHT-OF-WAY CLEARING

Chris Compton will be meeting with Ronnie Ponton to walk the raw water and effluent line rights-of-way. The recapturing of the rights-of-way will be completed under Central Virginia Electric Cooperative's contract. Staff will be checking the rights-of-way several times a year to check on the line, valves, etc. and to ensure that everything is operating as designed.

F. <u>New Business</u>

16. MR. PURCELL RE-APPOINTED AS THE BOARD OF SUPERVISORS LIAISON TO THE LCWA BOARD

The agenda included a letter from the Christian Goodwin, County Administrator stating the Mr. Purcell has been re-appointed as the Board of Supervisors representative to the Louisa County Water Authority Board.

17. MR. TOM FILER RE-APPOINTED TO THE LOUISA COUNTY WATER AUTHORITY BOARD OF DIRECTORS

The agenda included a letter from Christian Goodwin, County Administrator stating that Mr. Filer has been re-appointed to serve on the Louisa County Water Authority Board of Directors.

18. *"CHEMICAL PLANT FIRE AND POTENTIAL IMPACTS ON SUPPLY CHAIN DISRUPTION"*

A. IMPACTS TO THE NORTHEAST CREEK WATER TREATMENT PLANT

The Northeast Creek Water Treatment Plant had two barrels of potassium permanganate, one barrel was a partial and one was full. Approximately a 90-day supply.

B. WHAT HAS BEEN DONE TO MITIGATE IMPACTS

The Virginia Department of Health – Office of Drinking Water was contacted to find out how the Authority should proceed. They suggested sending an alert out through VA WARN. Staff felt that if other utilities had the chemical for their treatment plants, they would not readily "share" their product with us.

The following is a list of the utilities willing to lend a hand:

Rivanna Water & Sewer Authority, Charlottesville, VA (a barrel)
Stafford County Utilities Department, Stafford, VA
Wintergreen Utilities, Nelson County, VA (6 pails of granular product needs to be mixed)
Rapidan Service Authority, Orange, Green and Madison Counties, VA

Hampton Roads Sanitation District, Hampton Roads, VA (a large tote, but would need hazmat clearance to bring it from Hampton Roads)

The utilities were willing to "give" us the needed potassium permanganate, all we needed to do is come to their facility to pick it up, at no charge to the Authority. We were told, "we are neighbors after all".

Hunter Martin, Water Operations Manager added that our chemical supplier located several gallons of potassium permanganate and offered to sell it to the Authority for a fair market price.

19. REPLACEMENT OF STRAIGHT-LINE BRASS AGITATOR ARM FOR THE NORTHEAST CREEK WATER TREATMENT PLANT

The Board was informed that the agitator arm broke off and fell into the filter media. A new washer arm will need to be ordered and replaced. The washer arm that fell off will be retrieved when the filter media is changed. The filter media change out is on the maintenance schedule for the Northeast Creek Water Treatment Plant.

The Board was asked to consider purchasing two straight-line brass agitator arms since they were both original to the Northeast Creek Water Treatment Plant.

Mr. Filer made a motion to purchase two straight-line brass agitator arms at a cost of $11,000 plus freight. The motion was seconded by Mr. Kies and carried 6-0.

20. DRAFT RESOLUTION – APPRECIATION TO WESLEY BASORE FOR HIS YEARS OF SERVICE

The Board reviewed the draft resolution of appreciation to Wesley Basore for his years of service. Mr. Smith made a motion to approve the resolution of appreciation for Wesley Basore, requesting the Board members names be changed to reflect the current Board, no further changes were requested. The motion was seconded by Mr. Hardy and carried 6-0.

21. DRAFT RESOLUTION – APPRECIATION TO DURWOOD WILLIS FOR HIS YEARS OF SERVICE

The Board reviewed the draft resolution of appreciation to Mr. Willis for his years of service. Mr. Smith made a motion to approve the resolution of appreciation for Durwood Willis, requesting no changes. The motion was seconded by Mr. Kies and carried 6-0.

G. Reports

22. PROGRAM MANAGER'S REPORT

Mary Johnson, Program Manager reported the following to the Board:

1. Employee files have been sorted and organized.
2. Established a data base to provide quicker, more accurate method to access employee information.
3. Established a checklist for on-boarding paperwork, orientation, and safety training for new staff. Same for off-boarding and exit interviews.
4. Most job descriptions have now been updated.
5. Posted vacancy for part-time Office Assistant. We received 56 applications, short-listed 8, called in 3 for a second interview and hired Nellie Clatterbuck.
6. Posted a vacancy for WWTP trainee. We received 24 applications, 3 were referred to maintenance, six were selected for interviews. A few withdrew, already making more per hour. Have received a few more applications.
7. Posted a vacancy for Maintenance. We received 4 applications, another 3 were referred from the WWTP trainee applicant. Scheduling interviews.
8. Busy with safety. Effective January 15, 2023 – max penalties for serious and other than serious violations increased from $14,502 to $15,625. Max penalties for willful or repeated violations increased from $147,027 to 156,259. Training and recordkeeping are key in preventing safety violations. In 2022, 1 reportable and 0 recordable incidents occurred our of almost 40,000 hours of on the job by staff.

H. General Manager's Report

● **January levels**: At the end of January 2023, the static well levels are up approximately 11.3 feet from the end of December 2022 levels. From January 2022 to January 2023, the well levels are down approximately 1.1 feet.

The smaller table shows static well levels located nearer to the production wells. These levels are up approximately 32 feet from the end of December 2022 levels. From January 2022 to January 2023, the well levels are down approximately .8 feet.

As of February 2, 2023, for the Northern Piedmont Region, the Department of Environmental Quality Drought Monitor indicates normal conditions for precipitation, groundwater reservoir levels and streamflow.

● The General Manager was asked to serve on a hiring committee for a new position being created at Rivanna Water & Sewer Authority, Director of Administration & Communication.

● An email sent to Dan Villhauer, Dewberry Engineering, LLC (engineer for Crossing Pointe Development behind Walmart) itemizing the steps Louisa County Water Authority has taken to ensure safe reliable water for the Zion Crossroads Service Area.

● An updated market analysis of proposed increases for utility workers in the surrounding area.

● The current past-due listing is down to $9,474.07 from the past-due listing provided in the General Manager's Report, which reported the past-due balance of $13,369.42.

● Congressman Bob Good visited the Louisa County Administration Building and Ms. Baughman was invited to the table to discuss water issues.

I. Committees

J. Short Notice Items

K. Closed Session

23. CLOSED SESSION PURSUANT TO VA. CODE SECTION 2.2-3711(A)(7) FOR THE PURPOSE OF CONSULTATION WITH LEGAL COUNSEL AND BRIEFINGS BY STAFF MEMBERS OR CONSULTANTS PERTAINING TO ACTUAL OR PROBABLE LITIGATION, WHERE SUCH CONSULTATION OR BRIEFING IN OPEN MEETING WOULD ADVERSELY AFFECT THE NEGOTIATING OR LITIGATION POSTURE OF THE PUBLIC BODY.

Mr. Hardy made a motion to close the regular open meeting and immediately reconvene in executive closed session for the purpose of consultation with legal counsel and briefings by staff members or consultants pertaining to actual or probable litigation, where such consultation or briefing in open meeting would adversely affect the negotiating or litigation posture of the public body. The motion was seconded by Mr. Smith and carried 6-0.

RETURN TO OPEN MEETING:

Mr. Foster closed the closed session and immediately reconvened in regular open meeting at 8:05 pm.

CERTIFY:

Mr. Foster read the following statement prior to the vote to certify the closed session.

"I will now poll members to certify that, to the best of your knowledge, only public business matters lawfully exempted from the open meeting requirements under the Virginia Freedom of Information Act, and as identified in the motion for which the closed meeting was convened, were discussed, and considered by the Board. If any member believes that the Board varied from the purpose stated for the closed meeting, please state so and the reason prior to casting the vote." A roll call vote was requested with the following results:

Mr. Foster	YES
Mr. Smith	YES
Mr. Filer	YES
Mr. Hardy	YES
Mr. Kies	YES
Mr. Morgan	YES

The motion was carried 6-0.

Next meeting date - The next business meeting is scheduled for March 8, 2023.

L. Adjournment

THERE BEING NO FURTHER BUSINESS, Mr. Hardy made a motion to adjourn at 8:08 pm. The motion was seconded by Mr. Kies and carried 6-0.

BY ORDER OF:

Judson Foster
Chairman
LOUISA COUNTY WATER AUTHORITY